

**CHAPTER xliii.**

An Act to authorise the Falmouth Docks and Engineering Company to construct a new dry dock and for other purposes. [15th July 1926.]

A.D. 1926.
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WHEREAS by the Falmouth Docks Acts 1859 to 1921 the Falmouth Docks and Engineering Company (hereinafter called "the Company") were incorporated and authorised to construct and maintain a tidal harbour and certain docks and other works at Falmouth in the county of Cornwall and to exercise various other powers including powers with respect to the repairing refitting and equipment of vessels :

And whereas the business of the Company in the repairing refitting and equipment of vessels has largely increased and it is expedient that the Company be authorised to construct and maintain a new dry dock and works connected therewith and that the other provisions of this Act be enacted :

And whereas a plan and sections showing the lines and levels of the new dock authorised by this Act such plans showing also the lands on which the dock will be situate have been deposited with the clerk of the peace for the county of Cornwall and are hereinafter referred to as "the deposited plan and sections" :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

[Price 4d. Net.]

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[Ch. xliii.] *Falmouth Docks* [16 & 17 GEO. 5.]
Act, 1926.

A.D. 1926.

— May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short and
collective
titles.

1.—(1) This Act may be cited as the Falmouth Docks Act 1926.

(2) The Falmouth Docks Acts 1859 to 1921 and this Act may be cited together as the Falmouth Docks Acts 1859 to 1926.

Definitions.

2. In this Act unless the subject or context otherwise requires :—

“ The Act of 1919 ” means the Falmouth Docks Act 1919;

“ The Act of 1921 ” means the Falmouth Docks Act 1921;

“ The new dock ” means the dry dock by this Act authorised;

“ The Trinity House ” means the Master Wardens and Assistants of the guild fraternity or brotherhood of the Most Glorious and Undivided Trinity and of St. Clement in the Parish of Deptford Strond in the county of Kent commonly called the Corporation of the Trinity House of Deptford Strond;

Words and expressions to which meanings are assigned by the Act of 1919 or the Act of 1921 have the same respective meanings.

Incorporation of Act.

3. The Harbours Docks and Piers Clauses Act 1847 is incorporated with and forms part of this Act subject to the proviso to section 2 of the Act of 1919 and so far as applicable for the purposes of this Act and not varied by or inconsistent with the Falmouth Docks Acts 1859 to 1926.

Power to
construct
works.

4.—(1) Subject to the provisions of this Act the Company may make or complete and maintain in the lines or situation and according to the levels shown on the deposited plan and sections the work in the borough

A.D. 1926.

of Falmouth hereinafter described and may by agreement enter upon take and use such of the lands delineated on the deposited plan as may be required for that purpose and do not belong to the Company and the construction of so much of the said work as has already been constructed by the Company is hereby sanctioned and confirmed.

The work hereinbefore referred to and authorised by this Act is:—

A dry dock to the north-westward of the Company's existing dry dock No. 3 extending from a point 62 yards or thereabouts north-westwards of the south-western end of the said dry dock No. 3 and terminating at the sea wall authorised by the Act of 1919 together with an entrance cut through the said sea wall from the Company's tidal harbour.

(2) The Company within the limits of deviation shown on the deposited plan or elsewhere on the dock estate may from time to time make and maintain for the purposes of or in connection with the new dock all necessary or convenient cuts channels locks dock entrances quays sea walls wharves jetties slipways mooring posts buoys warehouses sheds repairing yards and works electricity pumping and sluicing works and apparatus tanks cranes lifts and other works buildings plant machinery appliances and conveniences Provided that any electricity works and apparatus made or maintained under the provisions of this section shall be so constructed maintained and used as to prevent any interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of such line.

5. If the new dock is not completed within three years from the passing of this Act then on the expiration of that period the powers by this Act granted for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed Provided that the Company may at any time and from time to time within the limits of deviation shown on the deposited plan make and maintain all

Period for
completion
of dry dock.

A.D. 1926. — such incidental extensions and enlargements of the new dock as they find requisite.

Additional
borrowing
powers.

6. Section 46 (Power to borrow) of the Act of 1919 and section 27 (Power to borrow) of the Act of 1921 shall each have effect as if the words "one half" were inserted therein instead of the words "one third part."

Application
of moneys.

7. The Company may apply for or towards all or any of the purposes of this Act to which capital is properly applicable any sums of money which they have raised or are authorised to raise under the authority of the Act of 1919 or the Act of 1921 as respectively amended by this Act.

Application
of sections
of Acts of
1919 and
1921.

8. The following sections of the Act of 1919 and the Act of 1921 shall so far as the same are applicable extend and apply to and for the purposes of this Act as if the same with any necessary modifications were re-enacted in this Act (that is to say) :—

Act of 1919—

Section 6 Lateral and vertical deviation ;

Section 19 Works to be deemed part of Company's undertaking ;

Act of 1921—

Section 38 Saving rights of Duchy of Cornwall ;

Section 39 Saving rights of Falmouth Harbour Commissioners.

Crown
rights.

9. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Lights on
works
during con-
struction.

10.—(1) The Company shall at or near such part of the works by this Act authorised as shall be below high water mark during the whole time of the construction alteration or extension of the same exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade shall from time to time require or approve.

(2) If the Company fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding

twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail. A.D. 1926.

11.—(1) Subject to the provisions of this Act any work by this Act authorised shall only be constructed so far as the same shall be on under or over tidal waters or tidal lands below high water mark in accordance with plans and sections approved by the Board of Trade under the hand of one of the secretaries or assistant secretaries of the Board of Trade and subject to such restrictions and regulations as the said Board may prescribe before such work is begun. Works below high water mark to be subject to approval of Board of Trade.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Company and the amount of such cost shall be a debt due from the Company to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt.

12.—(1) After the completion of the works by this Act authorised the Company shall at the outer extremity of those works below high water mark exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Trinity House shall from time to time direct. Permanent lights on works.

(2) If the Company fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

13.—(1) Where any work constructed by the Company under the powers of this Act and situate wholly or partially on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high water mark Abatement of work abandoned or decayed.

A.D. 1926. — is abandoned or suffered to fall into decay the Board of Trade may by notice in writing either require the Company at their own expense to repair and restore such part of such work as is situate below high water mark or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Board of Trade may think proper.

(2) If during the period of thirty days from the date when the notice is served upon the Company they have failed to comply with such notice the Board of Trade may execute the works required to be done by the notice at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt.

Survey of
works by
Board of
Trade.

14. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of any work constructed by the Company under the powers of this Act which shall be on under or over tidal waters or tidal lands below high water mark or of the site upon which it is proposed to construct any such work the Company shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Company to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt.

Provision
against
danger to
navigation.

15.—(1) In case of injury to or destruction or decay of the works by this Act authorised or any part thereof so far as the same shall be constructed on under or over any tidal waters or tidal lands below high water mark the Company shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Trinity House and shall apply to the Trinity House for directions as to the means to be taken.

(2) If the Company fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding ten pounds and in the case of a continuing offence to

an additional penalty not exceeding one pound for every day during which they omit after conviction thereof so to apply or refuse or neglect to obey any direction given in reference to the means to be taken. A.D. 1926. —

16. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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